

Appropriation of Endowments Rules

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[Appropriation of Endowments Rules](#)

[Published vide Notification No. G. O. Ms. No. 4851, Revenue, dated 26th November, 1960 - S.R.O. No. A-711 of 1960](#)

[Original rules published in Part V of the Fort St. George Gazette, dated 21st December, 1960 \(Page 683\).](#)

[G. O. Ms. No. 4851, Revenue, dated 26th November, 1960 - S.R.O. No. A-711 of 1960. - In exercise of the powers conferred by sub-section \(1\) and clause \(i\) of sub-section \(2\) of section 116 read with sub-section \(3\) of section 66 of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 \(Tamil Nadu Act](#)

[22 of 1959](#)

[\), the Governor of Tamil Nadu hereby makes the following Rules, namely:-](#)

[1.](#)

[These Rules may be called the Appropriation of Endowments Rules.](#)

[2.](#)

A notice as detailed in Rule 3 shall be served on or sent by registered post with acknowledgement due to the trustee or trustees of the religious institution.

3.

Notice of the proceedings under sub-section (1) of sub-section (2) of section 66 for the appropriation of endowments shall contain particulars of the endowments and the purpose or purposes for which the appropriation is proposed. The notice shall specify a date which shall not be less than thirty days from the date of its issue, within which objections or suggestions, if any, may be sent. It shall also specify the date on which an inquiry, if any, is proposed to be held to consider the objections or suggestions.

4.

A copy of the notice shall be published by affixture-

(a)

on the notice board of the office of the Assistant Commissioner in whose division the institution is situate and the office of the [Joint Commissioner and the Deputy Commissioner]

[Substituted for the words 'The Deputy Commissioner' by G. O. Ms. No. 275, C. T. & R. E., dated the 16th July 1997.]

;

(b)

on the notice board or the front door of the temple or math concerned;

(c)

on the notice board of the office of the Municipal Council including the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or village chavadi and, if there is no village chavadi, on some other public place in the village in which the temple or math is situate; and

(d)

in any other conspicuous place in the locality in which the temple or math is situate which may be selected by the [Joint Commissioner or the Deputy Commissioner, as the case may be]

[Substituted for the words 'The Deputy Commissioner' by G. O. Ms. No. 275, C. T. & R. E., dated the 16th July 1997.]

, in his discretion:

Provided that where the proposal is in respect of a specific endowment, the properties of which are not situate in the municipality including the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or village in which the temple or math is situate, the notice shall also be published in the manner aforesaid in the place in which the properties are situate.

5.

A copy of the order of [Joint Commissioner or the Deputy Commissioner, as the case may be]

[Substituted for the words 'The Deputy Commissioner' by G. O. Ms. No. 275, C. T. & R. E., dated the 16th July 1997.]

, shall, in addition to being communicated to the trustee or trustees and to the persons who appeared in the proceedings, be published in the manner laid down in rule 4 for the publication of the notice.

The order shall also be published in the District Gazette in the case of a math or temple or specific endowment attached to a math or temple situated in the district or in the Tamil Nadu Government Gazette in the case of a math or temple or specific endowment attached to a math or temple situated in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or to specific endowments attached to a math or temple situated in more than one district.

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